

Contract & Building/Pest Inspection Red Flags — South Australia

What to check before you're legally committed — with just 2 days to move.

Correct as at July 2026. General information only, not legal advice — always have a conveyancer review your specific contract.

Section 1 — Understanding the Form 1 (Vendor's Statement)

- ☐ [] **Know what it is.** The Form 1 is South Australia's equivalent of a vendor disclosure statement, typically prepared by a specialist provider on the seller's behalf and given to the buyer, disclosing key information about the property.
- ☐ [] **Know it triggers your cooling-off clock.** Your 2-clear-business-day cooling-off period runs from when a complete Form 1 is served — an incomplete or late Form 1 affects when your rights actually start, so confirm the exact timing with your conveyancer rather than assuming.
- ☐ [] **Understand the compressed timeframe this creates.** With cooling-off SA's shortest at just 2 clear business days, you have far less breathing room than in other states — this makes prompt action essential.

Section 2 — Building & Pest Inspection: Genuinely Time-Pressured in SA

- ☐ [] **Book your building and pest inspection the moment you sign** — with only 2 clear business days, you need to move immediately, not "sometime this week."
- ☐ [] **Consider arranging a pre-arranged inspector on standby** if you're actively bidding on multiple properties, given how little time SA's cooling-off window gives you to organise this from scratch.
- ☐ [] **Use a licensed, independent inspector**, not one exclusively recommended by the selling agent without your own due diligence.
- ☐ [] **Get both a building and pest inspection**, ideally combined.
- ☐ [] **Ask specifically about:** structural issues, rising damp, roof condition, asbestos (common in pre-1990s homes), and general electrical/plumbing age.
- ☐ [] **Get the report in writing within your cooling-off window** — you need this in hand before the 2 days lapse if you intend to use it as grounds to withdraw.

Section 3 — Contract Fundamentals

- ☐ [] **Check special conditions carefully** — these can vary standard buyer protections.
- ☐ [] **Confirm finance clause terms** if you're not fully pre-approved.
- ☐ [] **Confirm the settlement date** works with your finance, insurance, and moving logistics.
- ☐ [] **Confirm deposit terms** — amount, due date, and where it's held.
- ☐ [] **Confirm all expected inclusions are explicitly listed** in the contract.

Section 4 — Before You Sign or Bid: Final Checks

- ☐ [] **Have a conveyancer review the contract and Form 1** — ideally before you sign, since your cooling-off window is short enough that a post-signature review leaves little margin for error.
- ☐ [] **Understand your cooling-off rights don't apply at auction.**
- ☐ [] **Know the exit cost if you do cool off** — a modest fee, reported as capped around \$100, considerably cheaper than the percentage-based penalties elsewhere in Australia.

Quick Reference — Key SA Contract Protections

PROTECTION	WHAT IT MEANS
Form 1 (Vendor's Statement)	Triggers the cooling-off clock once served
Cooling-off period	2 clear business days — shortest in Australia
Cooling-off penalty	Capped, reported around \$100
Auction	No cooling-off period
Building/pest inspection	Not automatically provided — arrange promptly given the short window

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